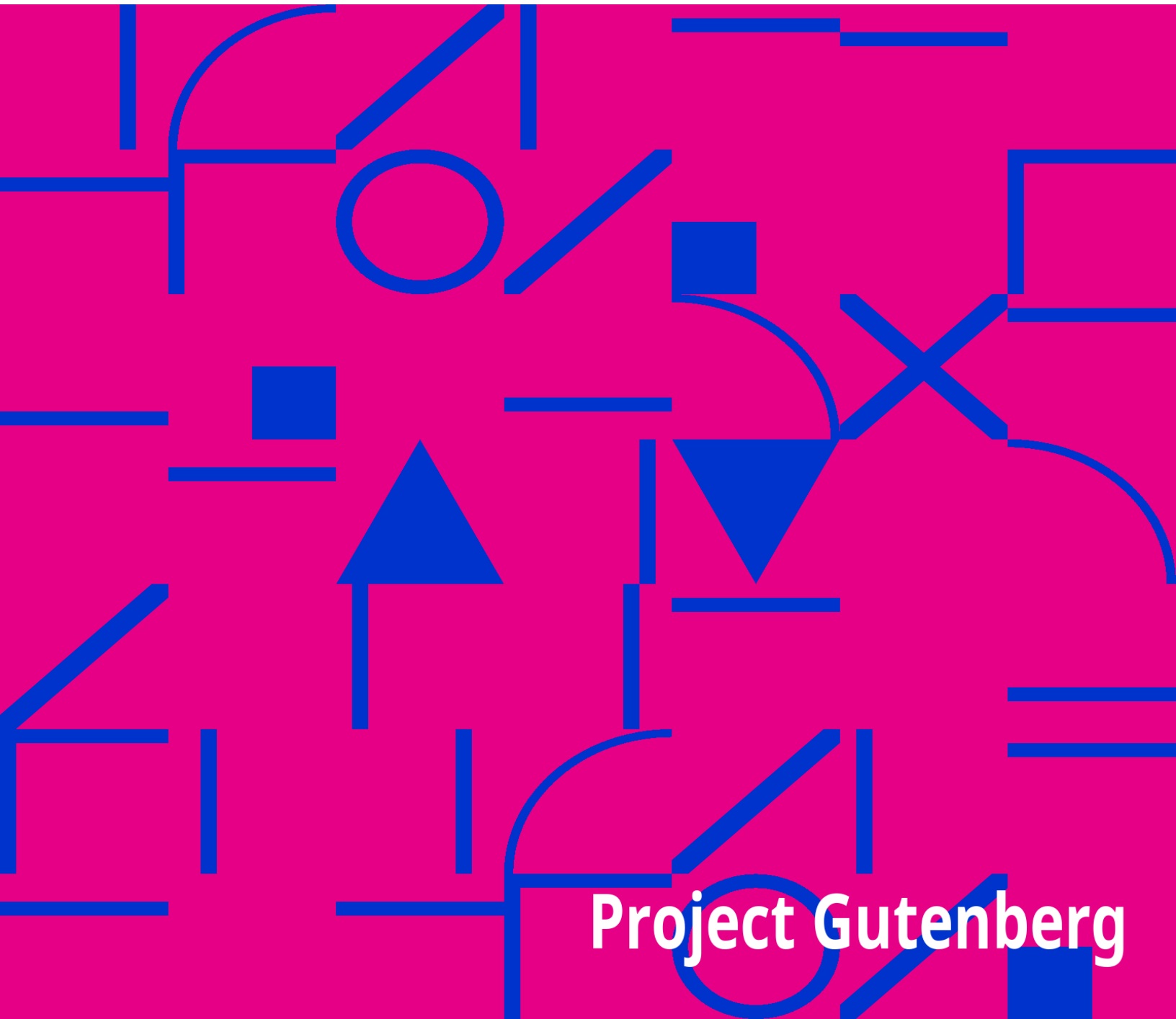


Hunted Down; or, Five Days in the Fog

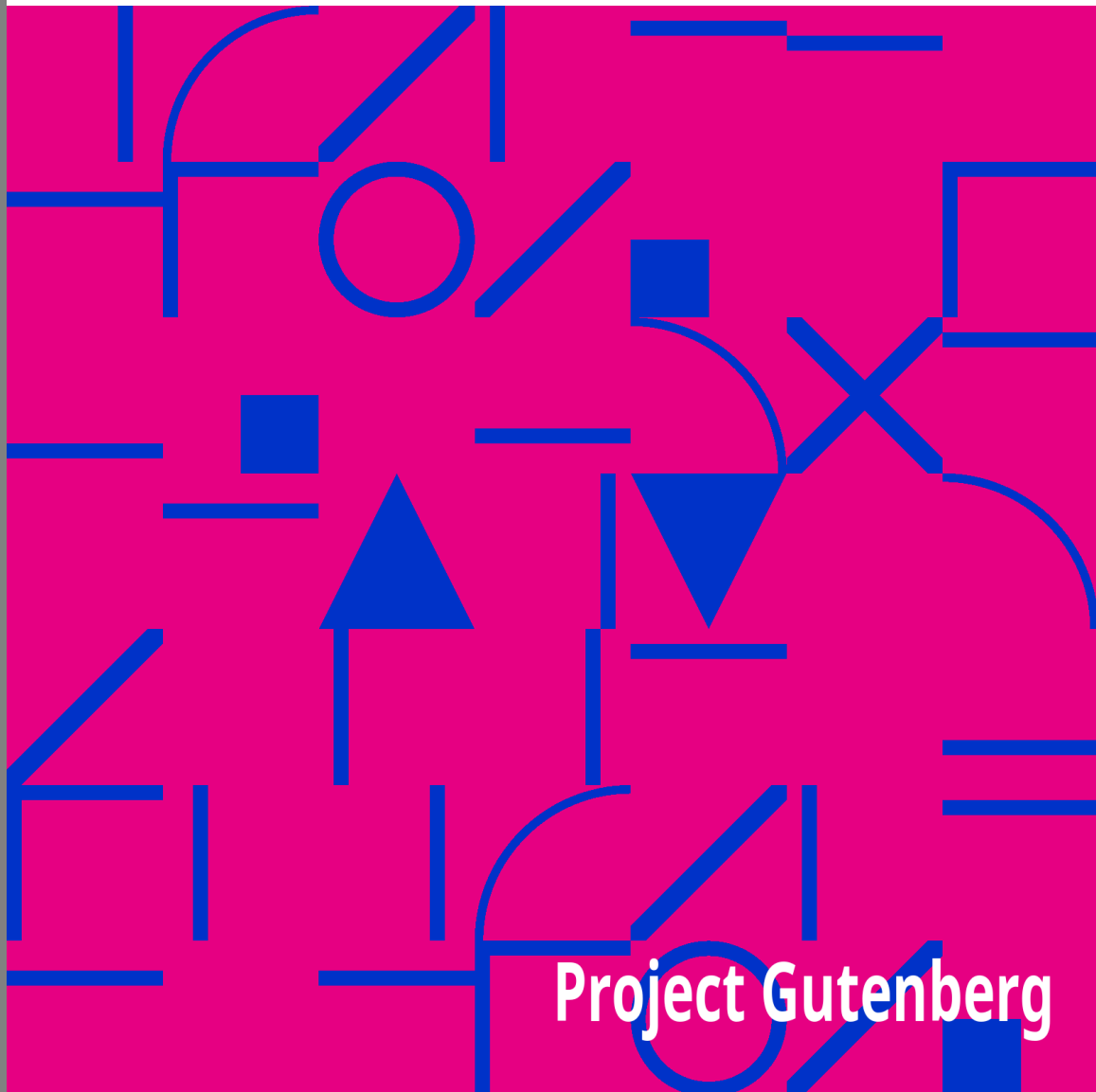
Harry Granice



Project Gutenberg

Hunted Down; or, Five Days in the Fog

Harry Granice



Project Gutenberg

The Project Gutenberg eBook of Hunted Down; or, Five Days in the Fog

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Hunted Down; or, Five Days in the Fog

Author: Harry Granice

Release date: July 9, 2010 [eBook #33124]

Language: English

Other information and formats: www.gutenberg.org/ebooks/33124

Credits: Produced by Sankar Viswanathan and The Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK HUNTED
DOWN; OR, FIVE DAYS IN THE FOG ***

HUNTED DOWN:

OR

FIVE DAYS IN THE FOG.

A Thrilling Narrative

OF THE

ESCAPE OF YOUNG GRANICE

FROM A

DRUNKEN, INFURIATED MOB.

*Written by himself while in jail, and respectfully
dedicated to Mr. Nicholas Breen.*

SAN FRANCISCO:

WOMAN'S PUBLISHING CO., 605 WASHINGTON ST.

1875.

PREFACE.

I write this narrative while confined in the Modesto jail awaiting my trial for the shooting of the defamer of my mother's name on the 7th of December, 1874. It will be seen by reading the following statement, that I gave myself up to the sheriff to be held to await the decision of the law. I will here explain why it was necessary for me to be taken to the Modesto jail. There was no safe jail at Merced, and it had been the custom for several months to take Merced prisoners to Modesto, a town in the adjoining county, and a distance of about forty miles. The cars passed through Merced about noon on the day of the shooting, five hours after the affair happened, and direct to Modesto. Why did not the sheriff improve this opportunity of taking me to a place of safety? Failing in that, a good span of horses could have conveyed us to Modesto during the afternoon. He knew the jail was not safe, and instead of doing what every sensible man would conceive to be a sheriff's duty, he chose rather to send me out handcuffed, with two men, on a public highway, to a lone wayside inn, seven miles from Merced, and ten from Snellings. It seems from my brother's and several other gentlemen's statement, that every horse was engaged at the livery stable in Merced before eight o'clock on that night.

There is another question which will naturally arise in the thinking mind: Where did the sheriff go, and what was he doing that night while the mob was getting ready? The mystery may be solved some day.

I wish to show in this simple statement that I did not flee coward-like from justice, but that I was making my escape from a drunken infuriated mob, after being duly liberated by the deputy sheriff. I understand that the mob, or a portion of the mob that night returned and destroyed my step-father's printing office, although the sheriff was in town.

H. H.
GRANICE.

Hunted Down; or, Five Days in the Fog.

Oh, why this fog, so thick and dark for five long days and nights?
It seems as though kind Providence has veiled the heavenly lights,
That he who seeks his life to save shall live the tale to tell
Of drunken mobs and demon cries, like legions just from hell.

On Monday morning, at about fifteen minutes to eight o'clock, December 7th, 1874, immediately after the shooting, or as soon thereafter as I could collect my scattered senses, which was in about three minutes, I inquired for the sheriff for the purpose of giving myself up; but he nor any of his deputies were on the spot. After waiting a few minutes longer I began to grow impatient at the delay of the officers, and not wishing to move from the scene of shooting for fear the movement would be misconstrued and I be accused of trying to effect an escape, I sent a messenger in quest of Sheriff Meany (I forget now who the messenger was). In a short time thereafter Sheriff Meany arrived on the spot, and perceiving him, I addressed him thus: "Sheriff Meany, I am your prisoner." He grabbed me in rather a rough manner by the lapel of my coat, took me to the lock-up, thence to the El Capitan hotel, and after remaining at the latter place for half an hour (for what reason I know not), he conducted me back to the lock-up, thrust me in, and turned the key on me. In a short time thereafter my breakfast was brought to me without knife or fork to eat with. The victuals were not fit for a dog to eat. I so expressed myself to Meany, and asked him to give me a decent breakfast. He answered me thus: "That has got to answer. Can't treat you different from other prisoners." With the exception of the coffee, I set the breakfast aside.

In the meantime, quite a crowd had collected outside the jail, and Meany was inciting them to mob violence by his vindictive expressions against me. I kept perfectly quiet and said nothing to Meany nor his deputies. Suspecting the duplicity of Meany, I despatched a courier for my brother George, who was living some fifteen miles north of Merced. My brother arrived in town about noon, and immediately came to me. He was searched by Meany and then admitted into the lock-up. He had hardly shaken hands

with me when he heard Meany say something, and turning to me, remarked: "I hear Meany talking, and I think it unsafe to be in here, as I am in their power while shut up in here." He immediately asked to be let out, and his request was acceded to. In the course of the day a fellow named Packard, a shoulder-hitter of Meany's, came skulking around the jail and, picking up a gun, attempted to get an opportunity to shoot me through the bars of the lock-up. I perceived his intention in time to hug the wall directly under the bars, thereby preventing him from assassinating me. The deputy sheriff told him to put the gun down; that he had no right to pick it up. After loitering around a few minutes longer, Meany came up, and then this Packard commenced to annoy me with insulting remarks; and although Meany was there and heard him, he said nothing to him. He left shortly after, indulging in the remarks mentioned above, and I afterwards learned that he returned and tried to shoot me through the bars of the jail with a pistol. I knew that my danger was great, and my only hope was in my friends protecting me, not the Sheriff, for he had expressed himself in such a free manner in my hearing, although he did not know that I was listening, that I knew there was no protection to hope for from that source. Knowing this, I did not beseech him to save me; I merely asked him, when I gave myself into his custody, to take me before a justice of the peace; I would waive an examination and go to Modesto. It was eight o'clock in the morning when I delivered myself up to Meany.

The cars would leave for Modesto at 1 P. M. There were, therefore, five hours in which to allow me to do that which would take but ten minutes, to wit—take me before a justice of the peace, and allow me to waive an examination. I told him it was dangerous for me to remain in Merced, and I wanted to waive, and go to Modesto for safety. My attorney, P. D. Wigginton, mentioned the matter to many in my presence, about nine o'clock in the morning. One hour passed—two hours—three—four. It was one o'clock, and still Meany had done nothing, although repeatedly urged by my friends to do something. Well, when one o'clock arrived, and I still remained in the lock-up, I knew what I could expect from Meany. I then made up my mind to say nothing to him, but let matters take their course, and await developments. He, no doubt, was surprised that I did not beg him to take me to some place of safety; but I knew it was useless to ask him to save my life. I had asked him to take me to Modesto in order to prevent

violence; and one o'clock arriving, I knew what his action meant, on account of his expressions used in my hearing while I was lying in the lock-up. It was plain to me that he was in sympathy with the mob, which I knew was rising. I said nothing, but kept my own counsel.

A heavy fog came up about five o'clock P. M., and it was near dark at that hour. Meany opened the door and ordered me, in a quick, sharp, rough voice, to put on my coat, which I had taken off in order the more easily to slip through the hands of the mob in case they broke in the lock-up to take me out. Said Meany:

"Be quick! Put your coat on. Got to take you out of this right now, as they will be down here in less than an hour and hang you!"

I merely said to him, "Why didn't you take me to Modesto when you could have done so with safety?"

That question was a poser to him, and he made some inarticulate reply. I put on my coat, and accompanied by Meany and Deputy Sheriff Breen, one carrying a double-barreled shot-gun, the other a repeating rifle, started towards the new court house, which lies just at the edge of town. Upon reaching the south-west corner of the enclosure surrounding the building, I perceived a thorough-brace awaiting us. John Hathaway had the lines, and I was handcuffed and put in the carriage with Deputy Breen, and Meany told Breen to go as far as the Half-Way House and there stop. After giving this order, he started back to town. I then saw through the whole arrangement. He had put me into the hands of a deputy, and as he confidently expected the mob would hang me, he would be free from blame, and could say, "Granice was not in my hands, but in the hands of a deputy."

During all this time I said nothing although I thought a great deal. Hathaway drove, according to Meany's orders, toward the Half-Way House. It struck me, as well as the deputy sheriff and also Hathaway (as I afterwards learned from their conversation), that the mob was lying in wait at the bridge, at the crossing of Bear Creek. I kept a sharp look-out ahead, and in a few minutes the Bear Creek bridge loomed up through the fog, about one hundred yards ahead. I kept a steady eye on the structure as we drew near, expecting every second to see the forms of the devils.

At last the bridge was reached and crossed, and that which I most dreaded and feared—the crossing of Bear Creek bridge—was passed in safety. While crossing the bridge, I looked behind and perceived eight men about one hundred yards behind, on foot, approaching the bridge.

The programme was not laid down quite right. They were about one minute behind time, thanks to John Hathaway's rapid driving, who, of course, together with the deputy sheriff, knew nothing of the little arrangement to get me on the road. But they strongly suspected, as I learned from a word that I caught from their whispered conversation. After crossing the bridge, Hathaway whipped up his horses, and we started off at a rapid pace for the Half-Way House. I heard Deputy Sheriff Breen remark to Hathaway:

"John, its strange Meany didn't tell us to keep right on to Modesto, instead of stopping so near town. But I have got to follow instructions. If the mob comes, I'll turn Harry loose, d——d if I don't, if there is no other recourse."

I then spoke up and said: "Well, Mr. Breen, if you do, and I am alive, you will find me in the Modesto jail inside of a week."

He then remarked: "Oh, they may not come."

The above remark was the only one I passed from the time of leaving the lock-up till I arrived at the Half-Way House, as I was deeply engaged in thought, trying to arrive at some plan to outwit the mob, whom I felt certain would be on my tracks ere long, if they were not so already. It was half-past seven or eight o'clock when we arrived at the Half-Way House, six miles north of Merced. I was led into the house, securely handcuffed. The horses were taken out of their traces; then supper was ordered. We sat down to the table and eat our supper. After finishing my repast, I was conducted to a room and put to bed with the hand-cuffs on. I had no sooner laid down when I was agreeably surprised to see my brother George step into the room—a young man about twenty years of age, and brave as a lion. Like a sleuth-hound he had scented me out. It was then between eight and nine o'clock. In presence of Hathaway, Breen and the host, we held a hurried conversation. George was armed and on horseback, but his horse was completely fagged out. He said:

"I will ride to town, and if met by the mob on the road, I will put spurs to my horse and give the officer an alarm."

I tried to dissuade him from running any risk, but he would not listen to me. He said:

"I will ride towards town; if I reach there without encountering the mob I will get a fresh horse and stand guard at the bridge."

He then left. I afterward learned that he reached town with his horse completely broken down, and applied to all their livery stables for another, but was told that they were all engaged (doubtless to the mob).

After my brother's departure, the deputy sheriff removed one of the hand-cuffs from my wrist, fastened it on his own, and got in bed with me, Hathaway and Powell, the proprietors of the house, standing guard. Shortly after Breen retired I dropped off asleep. I had slept for some time when I heard Hathaway call to Breen in an undertone:

"Wake up, Nick, they are coming!"

I immediately awoke my sleeping bed-fellow, who, jumping up, listened for a moment. Breen stopped to listen again, when Hathaway exclaimed, "For God's sake, Nick, hurry up; they are right here!" Hathaway was white as a sheet, and held a double-barreled shot-gun in his hands in a determined manner, while Breen hastily picked up his pants from the floor, took out the key of the hand-cuffs, and taking me by my extended wrist, loosened it (it seemed an age, while he was feeling in his pocket for the key). At this instant I heard the fiends for the first time. They were then about one hundred yards from the house. I hurriedly put on my pants, shoes and vest, and catching up my coat, I made a hasty exit out of the back door. As I did so, a terrible shout went up from the throats of the mob, which sounded like the yells of devils from the lower regions, and I thought they had discovered me as I passed out of the door. As soon as I reached the open air I got down on my hands and knees and crawled very softly about fifty yards from the house, when I stopped and put my ear to the ground to see if they were yet on my track. The fog was very thick; one could not see three yards ahead. I listened for a second; then taking off my shoes to prevent making a noise, and putting on my coat, I crawled about one thousand yards. I then

stopped to think what was best for me to do to outwit those seeking my life. I argued to myself that it was best to tack back toward Merced, as the mob would be apt to pursue me northward and eastward that night. They would imagine, so I thought, that I would flee before them and strike for the Merced river; so I concluded to go where they would least expect to find me. I would return and strike Bear Creek, which has very high banks and a narrow channel, but which at that time contained no water. If I could reach the creek (which was some seven miles off) before day-break, I knew I would be safe for one day, at least, provided I was very cautious. With this resolution formed, I listened for a few seconds, and hearing nothing, I started to make a semi-circle of the Half-Way House in order to get on the other side of it. By a bright light which the fog magnified to at least ten times its size, which kept moving to and fro in and around the Half Way-House, which was either a torch or a lantern, I knew that the blood-thirsty crew were searching under the porch and in the out-houses for me. I had not proceeded a quarter of a mile after taking my resolve to get between the mob and Merced, when I came to the road leading from the above houses to Cox's Ferry. I stopped and listened for a second and peered through the fog, which was growing denser and more dense as the night advanced, but could discern nothing but the bright light before mentioned, which I was utilizing as a guide to travel by. I then crossed the road; I had no sooner done so than I discovered two horsemen going toward Snelling. I fell flat on my face, scarcely daring to breathe, and they passed on without discovering me. While lying down I watched them attentively to see if they suspected their close proximity to me, as they were riding at that moment very slow, and were apparently on the alert for any sound which might possibly reach their ears. I saw several more horsemen, but luckily they did not see me before I had accomplished the semi-circle around the Half-Way House; but after accomplishing that manœuvre, I saw no one again that night, as I kept away from the roads, and was not under the necessity of crossing any more. When about four miles from Merced, I altered my course slightly with the intention of striking Bear Creek; about one or two miles below town; but losing my reckoning, I reached the creek about five hundred yards from the bridge.

It was now near daylight, and the fog was impenetrable to the eye, or at least all objects moving in it at a greater distance than fifty yards. Having

reached the creek, and put on my shoes (having walked all the way from the Half-Way House in my stocking feet), I proceeded up. By daylight I was opposite the County Hospital Farm, situated northeast of town. I cautiously passed beyond it, and as there was a road running on each side of the creek at this point, I scrambled up its banks and struck out toward the foot-hills, knowing that I would not be apt to encounter the mob off from a road, within a circle of five miles from Merced. I commenced to walk around a section of land which was marked by a furrow, and which I think belonged to Upton. I had to keep walking to keep from freezing.

I was now about two miles from the Hospital grounds the hour about nine o'clock A. M., and up to this time I had only halted once, then for only a second to put on my shoes. I was sick, tired, thirsty, and commenced to feel hungry. I sat down for awhile to rest. I was very weak and emaciated from a severe attack of bloody flux, from which I had suffered several days prior to the shooting, and which continued during the first two days of my wandering. My mouth was dry and parched; there was no water to be seen; I looked at the grass; the fog had made it damp; I will try to suck the dampness I thought; as I was preparing to do so, to my horror I discovered that my jaws were locked. I had doubtless clasped them firmly the night before, determined to escape, and in my eagerness had not opened my mouth; and that, together with the cold and thirst, had fastened them vise-like. I rubbed and worked nervously for several minutes; then I bethought me of my printer rule which was luckily in my vest pocket. With this I succeeded in prying my jaws apart, and with a few crumbs of tobacco which I found in my pants' pocket, I found relief. I then resumed my walk; would walk around the section and return to my starting point; alternately walking a mile and resting for a half hour, thus I passed some three hours.

About noon the fog exhibited indications of clearing off, and I thought it best to hunt the shelter of some friendly creek, for the double purpose of screening myself from view and quenching my thirst, which was becoming almost unbearable. Sick and hungry, I started in quest of Bear Creek; and after traveling about an hour, I realized the fact that I had become lost in the fog. Previous to this discovery, I had passed within sight of several houses, but not knowing all the inhuman wretches who were hunting me down, I durst not apply within for food, and shelter from the cold, chilling fog, for fear of encountering some one in sympathy with the mob, if not one of the

actual participants. Upon finding that I was lost, I began to blame myself for not going boldly into one of the several farm houses, making myself known, requesting food and a conveyance to Fresno or Modesto, to deliver myself up to a sheriff who was not an actual participant in the mob, much less in sympathy with the same.

But I kept up my courage, and tried to discover my bearings. I thought I must be somewhere near Mariposa Creek; so trudging along for about two hours longer, I found that I had guessed rightly, and I struck the above mentioned creek about a mile or two north of the railroad crossing, and knew my whereabouts to a certainty. I clambered down its steep banks on one side and up on the other, when I espied a man about one hundred yards distant, armed with a rifle. Although the fog still continued to hang over the valley, I was fearful lest he had seen me. Immediately upon sighting him, I couched down in the tall grass, which grew quite rank on the banks of the creek at this particular spot, and cautiously raised my head to see if I had been discovered; as I did so, I perceived he had seen me. He was about sixty or eighty yards off, was standing with his face toward me, and had just made a movement to approach my hiding place, when with a sudden impulse I seized a long shovel handle (which I had picked up early in the morning, for use as a walking stick), and lying flat on my stomach, brought it to bear on the man. My ruse was successful. He evidently took the harmless weapon for a rifle, and immediately disappeared in the fog, going up the creek.

This man, whoever he was, no doubt, thinks to this day, that some one took him for Granice, and that he ran a narrow risk of being shot—with a shovel handle. As I said before, he took up the creek, and I proceeded down, and about four o'clock I struck the railroad crossing seven or eight miles from Merced. Still keeping on the north side of the track, I proceeded toward that town, being careful to keep away from the roads.

After proceeding two or three miles, I concluded to get on the other side of the track; and with that object in view, tried to catch a view of the telegraph poles, in order to find the track; in a few minutes I discovered them. In order to change my position to the other side of the track, I would have to cross two roads, one on each side, which was a dangerous undertaking so near Merced, in the day time. But the fog gave me courage, and I started. I

had just crossed over the track, meantime keeping my eyes on all sides of me, when I discovered a man riding along toward Merced. I immediately dropped flat, and he rode past, all unconscious of my near presence. This fellow, I should judge from his paraphernalia—consisting of six shooter, bowie knife and gun—was one of the brave crowd whom I encountered the preceding night at the Half-Way House. The horse was completely fagged out, and his rider was evidently returning to Merced for a fresh movement. I know you, sir; I saw you, but you did not me. After the outlines of horse and rider faded away in the foggy mist, I hurriedly walked about a half mile from the railroad, intending to lay in one of the many little hollows thereabouts and await the coming of dark.

It was now about half past four. Up to this time I had not had a drop of water, although I had hunted for it in creeks and "hog wallows." The cravings of appetite did not bother me much—my thirst was too keen. Arriving at the point just mentioned, I discovered a pool of muddy water, and getting on my hands and knees, I proceeded to slake my thirst. I took one swallow, and it burnt my throat like molten lead. It was alkali water, and the strongest I ever tasted. It was a bitter disappointment, but it was near night; I was but a few miles from town, and under the cover of darkness I could get water and maybe something to eat.

Night at last arrived, and under its sable folds I reached the railroad bed, and proceeded on my way—my place of destination, Merced. About seven o'clock I reached the outskirts of the town, and, proceeding cautiously to Fourteenth street, through Chinatown, crossed the railroad track below the El Capitan Hotel. Just as I stepped on the track two men passed on their way to town—evidently men from one of the farms beyond Merced. I was then about five hundred yards from my home, and I determined at any risk to find out the fate of my would be brother and poor dear mother, (whom I expected home on Monday night). Crawling on my hands and knees to within one hundred yards of the house (which was the last one at the west end of Seventeenth street), I watched for about five minutes to see if the place was under the surveillance of the mob. Discovering no indication of any one on the outside, I crept along, reached the back door, and cautiously tried to get a view into the interior, but could see nothing, as the windows were covered with heavy curtains. I shuddered at the gloomy appearance of everything about the house; I wondered if any of the family were dead

within. I then opened the back door, and looking in discovered the children and a neighbor lady, Mrs. Keogh. When I opened the door the children ran off frightened, as they did not know who I was. I hastily asked Mrs. Keogh where the family was. She replied "all gone." "Are they all alive?" She answered "yes."

Just then I heard a noise at the front door and beat a hasty retreat out the back door. I dare not venture back where there were so many children, so I went to another part of town, where I knew almost to a certainty those who were thirsting for my blood. I ventured to look into the house of two persons whom I did not know, I saw them through the windows of their house, and knew that if they were not friends they were not enemies. Going to the door, I rapped. The door was opened, and standing in the dark I requested a drink of water, which was handed to me. It was the first water I had tasted since leaving the Half-Way House. I then stepped boldly into the room and said:

"I suppose you know who I am? I am Granice."

They remarked, "Yes."

"Well," said I, "give me something to eat; I am almost starved."

Something told me there was nothing to fear from these people. Telling them to put down the curtains and lock the door, I sat down to the table and commenced to partake of a lunch which they sat before me. I feared to eat too heartily, as I had not tasted food for twenty-four hours. After eating and drinking and resting for about a half hour, I asked for a hat, as mine had been left at the Half-Way House the night before. One was given me, and also a blanket, and some victuals which I strapped up in the blanket; and throwing the whole over my shoulder, I signified my intention of departing, and left them, with the injunction to say nothing to any one about seeing me. They gave me their promise, which they faithfully kept.

I then took up my weary march again. It had been walk, walk, since the preceding night. After leaving my newly-made acquaintances, I struck off into the chilling fog, hardly knowing which way to turn. I had learned from these people that my brother and step-father were being hunted down by Meany and his mob, and I knew I must get away from the hot-bed of their

rendezvous—Merced—as soon as possible before daylight the next morning.

I proceeded toward Modesto, on the railroad track, and kept up my weary tramp, tramp, tramp, scarcely able to drag one foot after the other, until near morning. At about four o'clock I reached a point about four miles from the Merced river and one or two from the railroad, and could proceed no farther. Spreading my blanket, a single one, on the fog-damp earth, I laid down and slept for about an hour—the first rest and sleep for more than fifty-eight hours, unless it be the short stop I made while at Merced. But the sleep did me more harm than good, as the cold chilled me through and through, and left my limbs so stiff that I could scarcely stand, much less walk. I managed to drag my weary body back to the railroad, and just as I reached it I saw a hand-car coming down the track at a rapid rate. It was going toward the Merced river, to the section-house at that point. One white man and four or five Chinamen were in the car. Hailing the man, he stopped. I asked for a ride. He told me to jump on, and I did so, and sat right among the Chinamen. I told the man that I was hunting work, but had been taken sick and was scarcely able to travel; that I was going to Modesto, where I had friends. He said I was welcome to a ride. I watched him narrowly, and saw that he did not suspicion anything. I rode as far as the Merced river with him, and as he was going no farther, I was obliged to get off. He will probably be surprised to learn that that sick man hunting for a job was Granice, who at that time was being hunted down for his life, and for whom there were large imaginary rewards offered for his capture. I would advise him not to chide himself for his short-sightedness in not discovering whom I was, and thereby letting the reward slip through his hands, as I can assure him, had he captured me, he would have received not one dime for his pains.

Sick, worn out, footsore, not knowing the fate of my poor mother, brother and step-father, I cautiously approached the saloon at Cressy station, and peering through the window without being seen, I saw six or seven men sitting around the stove; I recognized but one among the number; the rest were strangers to me. Knowing my enemies, I saw at a glance there were none among those men. Half frozen and famished, I walked fearlessly into the bar-room, and took a seat by the stove. Addressing the bar-keeper, I asked for a glass of brandy. He evidently saw from my appearance that I

was very sick, and needed a strong stimulant; and filling a glass half full of brandy, he handed it to me; taking it, I drained every drop. I then commenced to warm my half-frozen body, but during the operation I was very silent. In a few minutes I felt revived, and I told the men that I was on my way to Modesto afoot, but that I was sick, and did not think I could hardly make the trip.

My acquaintance in the meantime said nothing, and did not even appear to recognize me. At last I succeeded in getting him to one side, and told him I wanted to get to Modesto by some means. He said he could not help me, but would not inform on me. He told me he knew the men present, and that they would help me, if anything, to get out of the clutches of the mob. I told him I wanted to be kept out of Meany's hands; also that he was in with the mob, to my way of thinking. He said they all understood that; that they, the men, would see me safely through. Here I eat breakfast, after which I went and hid myself in a barn. Peeping through the cracks of the same, I saw Meany and some of the mob, just as the afternoon train arrived, talking to one of the men I had seen in the saloon, and I thought I would be discovered sure. But in a few minutes the sheriff and posse (?) left, going up the river. I had guessed rightly; the men did not suspect me; if they did, they kept their own counsel.

I learned, during the afternoon, that my mother was on that train on her way to Merced, and that some one had whispered in her ear, your son is thus far safe. This was a great relief to me, for I had feared for her safety; I knew that rumors must have reached her of my being hunted down, and of the uncertainty of my escape from the mob, and I knew that her agony must be terrible.

I remained hid in the barn until nightfall, when I ventured forth, and was guided by two friends to a good hiding place, their main object being to keep me out of the clutches of the mob, as I informed them that I did not wish to evade the law, but wanted to reach Modesto when I could do so with safety. I did not look upon Meany as an officer, as he, to my knowledge, mixed with the mob, and deputized some of the ring leaders as his posse. I have his own word for this, because he told me, while returning with me to Modesto from my examination at Merced, that there was not a half-dozen men out but what he had deputized. I laid hid in my new retreat,

which was in a barn, some four or five miles from Cressy Station. This barn was filled with hay, and I burrowed a hole, got into it, covered it up, and lay hid all day, venturing forth at night only, to stretch my aching limbs and to get water.

While hid in this barn, I suffered from cold, hunger and thirst.

While hid here, the mob was hunting for me everywhere, and whenever the cowardly crew came to a thicket of willows that they feared to inspect closely or in which they thought I might be hid, they fired into the same. The firing was distinctly seen and heard by myself at one particular point on the Merced river. In the corral of the barn in which I lay hid there were a dozen or so of fine horses, out of which I could have taken my pick, had I desired to effect my escape, but that was far from my intention. I was determined not to flee if I could possibly reach Modesto in safety. Had I have had no opportunity to have done so, as a last resort I would have armed myself, mounted a good horse, and leading another, struck a bee line for Mexico. Knowing the country so well, and for other reasons which I will not mention here, I could have reached that country without fear of arrest; and after stopping there six months or a year, I would have returned and stood my trial.

Luckily, I had an opportunity to reach Modesto, but not without incurring a great risk from the mob, whom I had to dodge on every hand in order to reach Cressy Station, where, under the protection of five friends, I took passage to Modesto on Saturday morning. Arriving there at seven o'clock, I immediately went to the Ross House, eat my breakfast, and then sent a messenger in quest of the sheriff. He being out of town, his deputy, Chas. Aull, came into the parlor. I was introduced, to him, and gave myself into his custody. That night the sheriff called out a large number of men to prevent a set of scoundrels from Merced from mobbing me.

I have written this simple, uncolored, true statement of facts in justice to Nick Breen, as Mr. Fleming, the deputy sheriff, told my mother that Mr. Meany had ordered Mr. Breen to take me to Modesto, and that he (Breen) had disobeyed orders. My mother went immediately to Mr. Breen and asked him if what Mr. Fleming said was true. "No," said Mr. B., "I wanted to take Harry to Modesto, but Meany's strict orders were, the Half-Way House."

The following beautiful poem was written after the authoress had spent several hours in jail with the prisoner in company with his mother, in which time they all dined together; the meal being furnished from a restaurant by his mother. Young Harry acted as host, calm and dignified, though pale from confinement and want of sun and air:

THE FATAL SLANDER; OR, HARRY'S DEFENSE.

BY MRS. L. E. DRAKE.

The sun was shining bright without, where happy faces smiled,
But within the lonesome prison walls sat one so pale and mild;
No sigh escaped his peaceful lips, no tear bedimmed his eye,
Though weary from the waiting to know if he must die.

Kind stranger, do you wish to know what is the prisoner's crime?
'Twas because some cruel monster his mother did malign,
Which roused the sleeping passions of anger, hate and strife,
When in a time unguarded he took the offender's life.

"Oh now," said he, "I'm ready to answer for this crime;
You see I've killed the villain my mother did malign—
That mother who has cherished me through all my childhood days,
And rocked me on her bosom when weary of my plays;

That mother, who in her early years her orphan boy has led
O'er weary wastes and craggy peaks, to earn our daily bread,
Far over snow-capped mountains and through the sunny glens,
To sell her own productions—her books—to stranger men;

That mother, who at midnight hours, when daily toils were o'er,
And millions, on their downy beds inside their palace door
Were resting from all sorrow while she, who forced to roam,
Sat writing by the camp-fire—an authoress, with no home.

How many, many were the days, when I was but a child,

I stood beside that mother, and watched her pen the while,
Until her hand grew weary; her mind would fain have rest.
But the publisher was waiting; the book, her child might bless.

Thus months and years rolled onward; when childhood's days were done,
I stood beside that mother, a faithful, happy son.
For years we toiled together, with books and pen and type,
In hopes the future had for us a home—Oh, happy sight!

But ah! stern fate, how cruel! when men who mock our laws,
And strive with unrelenting hand to find some legal cause
To murder every cherished hope with slander's cruel knife,
And drop by drop to steal away poor woman's helpless life."

'Twas slander vile, young Harry saw upon the printed page;
His mother dear, the victim, which caused the fires to rage;
His cheeks grew pale with anguish, his heart could know no fear;
He only thought of days gone by, and mother's name so dear.

He only thought of years ago, when mother's face was young;
Her arms were strong and willing, then, to guard her little son;
But times have changed that youthful face, and age is creeping on,
While he, in early manhood now, must be the stronger one.

Shall he defend his mother's name? No duty is too great,
Though prison walls or gallows high for him will anxious wait;
And now within the lonely jail young Harry waits his doom;
Though it be liberty or death, the time must shortly come.

Oh, mothers dear and fathers, too! Oh, women, weak or strong!
Remember Harry's cause is yours, for you he's suffered long;
'Twas not for gold or laurel wreath, 'twas not for praise or fame,
'Twas not for love of honors great, but love of woman's name.

*** END OF THE PROJECT GUTENBERG EBOOK HUNTED DOWN;
OR, FIVE DAYS IN THE FOG ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.